LETTER OF ENGAGEMENT FOR TAX SERVICES

Thank you for selecting **TTT Tax Services** as your tax service provider. We look forward to developing and continuing our relationship with you.

Client details:

Full name: _____

ID number: _____

Income Tax number: _____

Physical Address: _____

Email Address: _____

Contact Number : _____

Client banking details: (As registered with SARS e.g. IRP5 / Pay slip):

Bank name: _____

Account name: _____

Account type & number: _____

Branch name / code: _____

This letter sets out the **terms** of our engagement ("Engagement") and is to be read together with our standard terms and conditions attached hereto, as well as the **scope of the services** to be performed by us, which together shall constitute the terms of our Engagement. By signing this letter, you acknowledge that you have read, understood, and agreed to the contents of this letter and the associated standard terms and conditions attached hereto and that you enter into this agreement under your own free will.

If you have any questions or require further clarification, please do not hesitate to contact us.

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1. Engagement

TTT Tax Services's scope of work will be to advise **[Client Name]** (the "Client") on tax and ancillary matters in accordance with this engagement. If additional out-of-scope services are required, these may be agreed upon separately.

This engagement does not create any legal relationship between **TTT Tax Services** and any parent, subsidiary, affiliate, officer, director, or employee of the Client beyond the terms set out in this letter and our standard terms and conditions.

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2. Instructions/Scope of Work

We have been requested to perform the following tax services from information supplied by the client:

- **Preparation and submission of Income Tax Returns (ITR14, ITR12).**
- **Provisional Tax Returns (IRP6).**
- **Application for Fixed Rate Tax Directives.**
- **Tax compliance audits and SARS queries assistance.**
- **Tax objections and appeals (ADR1 process).**
- **Individual tax planning and SARS dispute resolution.**

Further instructions may be provided to us in writing or orally. Any changes to your instructions should be communicated immediately, as they may materially affect the services provided.

3. Fees and Expenses

- Our fees are calculated separately for each of the main services listed above. Charges are based on the time dedicated to your affairs, as well as any expenses incurred in the course of providing our services. A schedule of fees is available upon request.
- Payment is due immediately upon receipt of each invoice.
- If payment is not made on time, we reserve the right to suspend our services until all outstanding amounts have been settled in full.
- Please note that all work carried out in the rendering of services is subject to the following limitation: we accept all documents at face value and do not conduct an audit. We are not liable for any losses, penalties, interest, or additional tax resulting from incorrect, incomplete, or late information provided by you or your failure to follow our advice or respond promptly to our or SARS's communications.

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4. Acceptance of Engagement

We appreciate the opportunity to be of service to you. Please confirm your acceptance of the terms outlined in this letter by signing below.

Signed at: _____

On this 1 day of January 20 25

For and on behalf of the Client:

Client Name: _____

Signature: _____

For and on behalf of TTT Tax Services:

Name: _____

Title: _____

Signature: _____

STANDARD TERMS AND CONDITIONS

These Terms and Conditions of Service should be read together with the illustrative engagement letter for tax services and may be adapted to suit the requirements of **TTT Tax Services**. The **Engagement Letter** and these **Terms and Conditions of Service** together constitute the entire Agreement between **TTT Tax Services** and the Client regarding the Services as outlined in the **Scope of Work**.

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1. DEFINITIONS

1.1. Unless the context indicates otherwise, the following terms shall have the meanings set out below:

1.1.1. **"Agreement"** means the Letter of Engagement, these Terms and Conditions of Service, and any annexures or schedules attached hereto.

1.1.2. **"Business Day"** means any day of the week other than a Saturday, Sunday, or public holiday designated in terms of the Public Holidays Act, No 36 of 1994.

1.1.3. **"Client"** means the individual or entity (be it a natural or juristic person) that enters into an agreement with TTT Tax Services for professional tax and accounting services.

1.1.4. **"Engagement"** means the Agreement.

1.1.5. **"Letter of Engagement"** means the document signed by both parties outlining the engagement scope and incorporating these Terms and Conditions of Service.

1.1.6. **"SARS"** means the South African Revenue Services.

1.1.7. **"Services"** means the professional tax and accounting services provided by **TTT Tax Services** as described in the Engagement Agreement.

1.1.8. **"TTT Tax Services"** means TTT Tax Services including its partners, directors, employees, agents, and contractors.

1.1.9. **"VAT"** means Value Added Tax payable at the prevailing rate in terms of the Value Added Tax Act, No89 of 1991 or any subsequent legislation pertaining to VAT in the Republic of South Africa.

2. GENERAL PRINCIPLES

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2.1. In providing the Services, **TTT Tax Services** shall under no circumstances:

2.1.1. assume any management responsibilities for the Client.
2.1.2. act as a legal representative for the Client.
2.1.3. make decisions regarding the Client's business affairs.

2.2. The Client shall be solely responsible for:

2.2.1. making all management decisions related to the engagement and its business overseas.
2.2.2. designating a qualified representative to oversee the Services.
2.2.3. providing and ensuring the accuracy of financial records and source documents.
2.2.4. establishing and maintaining effective internal controls.
2.2.5. monitoring ongoing business activities.

2.3. The Agreement shall be governed by the laws of South Africa, and any disputes will be subject to South African jurisdiction and shall constitute the sole agreement between the parties and no other conditions, stipulations, warranties or representations not included in this agreement may be relied upon.

2.4. No amendment or waiver of any of the terms of this Agreement shall be valid unless in writing and signed by both parties and this agreement shall novate and supersede any prior agreements entered into by and between the parties or representations made.

2.5. Any relaxation, indulgence or delay by either party in exercising, or any failure by either party to exercise, any right under this Agreement shall not be construed as a waiver of that right and shall not affect the ability of that party subsequently to exercise that

right or to pursue any remedy, nor shall any Indulgence constitute a waiver of any other right (whether against that party or any other person).

2.6. If any provision is deemed invalid or unenforceable, the remainder of the Agreement shall remain in force. No provision herein shall be construed against or interpreted to the disadvantage of a party by reason of such party having or being deemed to have structured, drafted and/or introduced such provision.

2.7. **TTT Tax Services** may at its sole discretion and election subcontract certain services in terms of the Agreement but remains responsible for its obligations. The Client may not subcontract any of its obligations in terms of the Agreement.

2.8. **TTT Tax Services** and the **Client** are independent persons and shall not act as agents of each other.

2.9. This Agreement may be executed (electronically or otherwise) in any number of identical counterparts, all of which when taken together shall constitute one agreement. Any single counterpart or a set of counterparts taken together which, in either case, are executed by the parties shall constitute a full original of this Agreement for all purposes.

3. SERVICE DELIVERY

3.1. The Client appoints TTT Tax Services to provide it with the necessary accounting and taxation services as from the signature date of this Agreement. Such services shall include but not be limited to:

3.1.1. Income tax compliance and advice;
3.1.2. VAT, PAYE, and other indirect tax matters;
3.1.3. SARS dispute resolution (objections, appeals, ADR);
3.1.4. Corporate structuring and tax planning;
3.1.5. Representation in SARS audits and investigations;
3.1.6. Tax due diligence and transactional reviews.

3.2. The Services to be rendered shall not include legal representation in tax court proceedings or statutory audits.

3.3. **TTT Tax Services** will provide the Services with the necessary skill, expertise and professional competence.

3.4. The **Client** will provide timely co-operation in providing all necessary documentation for **TTT Tax Services** to deliver the Services effectively as and when called upon to do so. The **Client** shall furnish **TTT Tax Services** with all required financial information within a reasonable time and per the time periods as set **by TTT Tax Services** to ensure timely preparation of financial records, income statements, management accounts and similar documentation. Delays in providing information will impact service delivery. Should the **Client** fail to provide necessary documentation timeously **TTT Tax Services** shall under no circumstances be liable for any sanctions taken by any body or governmental entity against it or the Client, including but not limited to SARS and **TTT Tax Services** may at its sole election elect to cancel this Agreement should the **Client** fail to provide the necessary documentation timeously or to co-operate with **TTT Tax Services** in preparing the necessary documents for submission to SARS.

3.5. All documentation including, but not limited to any vouchers, invoices, source documents, certificates and/or information provided by the Client to TTT Tax Services are accepted at face value and no audits or enquiries are performed into the accuracy thereof by **TTT Tax Services** and as such **TTT Tax Services** cannot verify the accuracy thereof nor make any representations in respect thereof. The Client guarantees and warrants that all information and documentation provided is complete, current, lawful and accurate and that same constitutes a true and accurate reflection of the Client's business affairs.

3.6. Should there be any material change in documentation provided by the Client to **TTT Tax Services** it shall inform **TTT Tax Services** of such changes immediately.

3.7. The **Client** undertakes to:

3.7.1. ensure the accuracy and completeness of all financial and tax records;
3.7.2. review and approve all tax submissions before filing;
3.7.3. to provide **TTT Tax Services** with any communications or notices as received from SARS or any other regulatory authority within 48 hours of receiving same;
3.7.4. ensure that all payments to SARS are made timeously and upon request.

3.8. **TTT Tax Services** may, in its own discretion, assign appropriately qualified personnel to deliver the Services.

3.9. **TTT Tax Services** does not accept responsibility for any penalties or interest resulting from late submission of VAT, payroll and income tax returns due to the Client's failure to provide information in time.

3.10. In so far as it may be required the Client herewith provides **TTT Tax Services** with the necessary consent and authority to communicate with SARS in relation to any taxation services on its behalf and / or to communicate with representatives of the Client or the Client to obtain any information and / or documentation.

4. PAYMENT

4.1. Payment for all Services shall be made by the **Client** upon presentation of an invoice by **TTT Tax Services** to it.

4.2. **TTT Tax Services** shall levy a fee as per its hourly tariff and the Client shall be liable to make payment for all fees for Services rendered as well any disbursements and/or fines / penalties imposed.

5. INTELLECTUAL PROPERTY

5.1. **TTT Tax Services** retains sole and exclusive ownership of all methodologies, software, and intellectual property developed in providing the Services.

5.2. Client-provided materials remain the property of the Client.

5.3. Nothing in this Agreement shall be construed as the requisite authority or consent for the Client to utilise the trade names, branding or intellectual property of **TTT Tax Services**.

5.4. Upon termination, each party shall cease using the intellectual property of the other party.

6. CONFIDENTIALITY

6.1. **TTT Tax Services** undertakes to maintain strict confidentiality of all **Client** information, records and financial documentation, except where:

6.1.1. the **Client** provides written consent for disclosure;
6.1.2. disclosure is required by law or a regulatory authority;
6.1.3. disclosure is necessary for legal proceedings or compliance with professional standards.

6.2. The **Client** agrees to maintain the confidentiality of any proprietary tools or methodologies used by **TTT Tax Services**.

6.3. It is recorded that **TTT Tax Services** is obligated to report any suspected fraudulent activities or suspicious transactions to relevant regulatory authorities.

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7. RECORDS

7.1. **TTT Tax Services** shall maintain all **Client** records in safe custody for a minimum period of five years or such longer period as required by law or a regulatory authority after which **Client** records shall be destroyed.

7.2. In the event that **TTT Tax Services** is requested to retrieve client records once its mandate and performance of its obligations in the Agreement has been completed it shall be entitled to levy a reasonable fee for the retrieval of such records.

8. LIMITATION OF LIABILITY

8.1. The **Client** holds harmless **TTT Tax Services** as well as its related entities, subsidiaries, directors, shareholders, representatives and agents from and against any and all claims resulting from a negligent omission or commission in the performance of the Services, a breach of a warranty in terms of this Agreement and/or any third party claims.

8.2. **TTT Tax Services's** liability for any claim related to the Services is limited to double the professional fees charged for the specific service, excluding VAT.

8.3. **TTT Tax Services** shall not be liable for any indirect, consequential, or incidental damages resulting from this Agreement or the provision of the services.

8.4. **TTT Tax Services** shall not be responsible for any penalties, interest, or other charges imposed by tax authorities due to errors or omissions in information provided by the Client or due to a failure by the Client to make payment to SARS or any other authority when requested to do so.

8.5. **TTT Tax Services** shall not be liable for any loss, damages, costs or expenses howsoever incurred as a result of misrepresentations, incorrect information/documentation, negligent or dishonest acts by the **Client**.

8.6. In determining any liability of **TTT Tax Services** or its representatives or directors a court or arbitrator shall limit such liability by having regard to the contribution to the loss or damage in question by all parties concerned based upon the relative degrees of fault; it being agreed that the provisions of Section 1 of the Apportionment of Damages Act No 34 of 1956 will apply to all claims made against **TTT Tax Services,** and that reference in this document to the terms "dishonest" and "negligence" on the one hand and "damages" or "losses" on the other shall fall within the meaning of "fault" and "damage: respectively as contained in section 1 of the said Act.

9. SURETY

9.1. Should the **Client** be a juristic person **TTT Tax Services** may request the directors, members or representatives thereof to bind themselves as Surety to the Client for the due and proper performance of the obligations of the **Client**.

10. BREACH AND TERMINATION

10.1. This Agreement shall endure indefinitely until such time as it is cancelled.

10.2. In the event of a breach of this Agreement, the aggrieved party shall be provide the offending party with 5 days written notice to remedy its breach of this Agreement (a 20 day time period shall apply should the Consumer Protection Act 68 of 2008 find application in the event that the Client is a natural person). Should the offending party fail to remedy its breach of the Agreement the aggrieved party may:

10.2.1. Cancel the Agreement and claim such amounts, if any, due and owing to it;
10.2.2. Claim specific performance; and / or
10.2.3. Institute a claim for damages.

10.3. Either party may terminate this Agreement for any reason whatsoever by providing 20 business days written notice.

10.4. Termination does not relieve the **Client** from payment obligations for Services rendered prior to termination.

10.5. **TTT Tax Services** may terminate this Agreement immediately by giving the **Client** notice of such termination if:

10.5.1. The Client provides false, fraudulent or misleading information.
10.5.2. The Client breaches any legal, statutory or regulatory obligations.
10.5.3. Any subsequent changes in law or professional regulations require termination.

10.6. In the event of non-payment, **TTT Tax Services** reserves the right to suspend Services until all amounts due and owing have been settled in full.

10.7. In the event of **TTT Tax Services** enforcing its rights in terms of this Agreement the Client shall be liable for its legal costs on the scale as between attorney and own client at a rate of R2,000 per hour plus VAT, including collection commission, tracing fees and costs of counsel.

11. PROTECTION OF PERSONAL INFORMATION

11.1. The Client herewith provides **TTT Tax Services** with the necessary consent to process its personal information as defined in the Protection of Personal Information Act 4 of 2013 and to share such personal information with any third party, either in the Republic of South Africa or abroad as may be required to perform the Services.

11.2. The Client herewith consents to **TTT Tax Services as well as its related entities and subsidiaries comprising the TTT Financial Group** contacting it to offer beneficial and related services which could assist it in properly structuring its financial affairs and if the Client does not consent thereto it shall opt out from such further marketing by marking the box hereunder:

☐ **Opt out of beneficial and related services marketing**

12. ANTI-MONEY LAUNDERING

12.1. The **Client** herewith agrees to provide all information and documentation as may be necessary in order to allow **TTT Tax Services** to comply with the requirements of the Financial Intelligence Centre Act 38 of 2001. A failure to provide such information / documentation upon request shall entitle **TTT Tax Services** to summarily cancel the Agreement.

13. LEGAL ADDRESSES & NOTICES

13.1. The parties select their respective addresses as listed in the Engagement Letter as their respective *domicilium citandi et executandi* as being the addresses where they shall accept all notices and pleadings relating to this Agreement. Service of any notice or legal process actually received at an address other than the designated address shall be regarded as effective.

13.2. Written notice delivered by hand or email to the designated addresses shall be deemed received on the date of delivery.

13.3. Either party may amend their legal address by five written days notice to the other party.

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